



ASSOCIATE JUSTICE
SUPREME COURT OF LIBERIA



JUDICIAL BRANCH
TEMPLE OF JUSTICE
MONROVIA, LIBERIA

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS OCTOBER TERM, A.D. 2019

BEFORE HIS HONOR: FRANCIS S. KORKPOR, SR.....CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIEASSOCIATE JUSTICE
BEFORE HER HONOR: SIE-A-NYENE G. YUOHASSOCIATE JUSTICE
BEFORE HIS HONOR: JOSEPH N. NAGBE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA.....ASSOCIATE JUSTICE

Joseph Boakai, Standard Bearer (UP), Wilmot J. M. Paye,	) APPEAL
National Chairman, et al. National Executive Committee	) Illegal Expulsion
(NEC) Members.....Appellants	) and Violation of
	) the Unity Party's
	) Constitution and
	) Article 20 (e) &
Patrick Worzie, et al., Secretary General a.i. & NEC of UP	) 9(e) & of the
Monrovia.....Appellees	) Constitution
	) Felonious Restraint

VERSUS

HEARD: November 12, 2019

DECIDED: December 23, 2019

JUDGMENT WITHOUT OPINION

When this case was called for hearing, Counsellors Amara M. Sheriff and Jimmy Saah Bombo appeared for the appellants. Counsellor Jonathan T. Massaquoi of the International Law Group appeared for the appellees.

The records show that the appellants filed an appeal before the Supreme Court from the ruling of the National Elections Commission of Liberia (NEC) in a matter involving the expulsion of Patrick Worzie, et al., Secretary General a.i., and the National Executive Committee Members of the Unity Party (UP) of Monrovia, Liberia.

At the call of the case before us, one of counsels for the appellants brought to the attention of the Court that appellants had filed a "Stipulation of Voluntary Discontinuance which reads as follows:

"STIPULATION OF VOLUNTARY DISCONTINUANCE

WHEREAS, there is pending before this Honorable Court an appeal taken by the appellants from the ruling rendered by the Board of Commissioners of the National Elections Commission, Republic of Liberia; and

WHEREAS, while this appeal is still pending undetermined, the appellants and the appellees met and amicably resolved the matter, subject of the Action of Illegal Expulsion and Violation of the Unity Party's Constitution and Articles 20 (e) and 79(e) of the Constitution of Liberia, in consequence of which the appellants and the appellees instructed their legal counsels to withdraw the instant appeal without reservation, thereby nullifying the expulsion of the appellees;

NOW, THEREFORE, these presents:

1. That pursuant to and in keeping with the instructions of the appellants and appellees, counsels for the appellants and appellees have on this day and date executed this Stipulation of Voluntary Discontinuance, withdrawing and terminating the above-entitled proceedings without reservation, thereby nullifying the expulsion of the appellees.

2. This Stipulation of Voluntary Discontinuance is being filed consistent with Rule 3, Part II of the Revised Rules of the Supreme Court (1999), which provides that the appellant and appellee may, in vacation by themselves or counsels, sign and file with the Clerk of the Supreme Court an agreement in writing, directing the cause to be withdrawn; and as to costs, shall pay to the Clerk any fees that may be due. To this end, the appeal growing out of the Action of Illegal Expulsion is withdrawn and terminated.

3. That upon the signing of this Stipulation by counsels for the appellants and the appellees and approval of same by the Honorable Supreme Court of Liberia, the Clerk of this Court is hereby authorized to have same filed, thereby terminating the above-captioned case forever.

IN WITNESS WHEREOF, THE PARTIES, BY AND THROUGH THEIR LEGAL COUNSELS, HAVE ON THIS DAY AND DATE EXECUTED THE ABOVE CAPTIONED STIPULATION AS A BASIS FOR THE COURT DISPOSING OF THE INSTANT APPEAL.

For: Hon. Joseph Boakai, Standard Bearer
(UP), Hon. Wilmot J.M. Paye, National
Chairman et al., National Executive
Committee Members

Amara M. Sheriff
COUNSELLOR-AT-LAW

For: Patrick Worzie, et al., Secretary General a.i.,
and National Executive Committee Members of
the Unity Party (UP)

Jonathan Massaquoi
COUNSELLOR-AT-LAW

APPROVED: _____

Joseph N. Nabge
ASSOCIATE JUSTICE
SUPREME COURT OF LIBERIA

This Court having ascertained from the counsels representing the parties whether their clients consented to the Stipulation of Voluntary Discontinuance and withdrawal of the appeal, and they having answered in the affirmative, and this Court being satisfied with the said Stipulation of Voluntary Discontinuance, it is hereby

ADJUDGED:

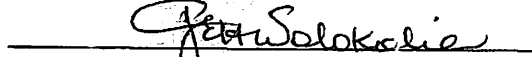
That the Stipulation of Voluntary Discontinuance filed by the parties being in conformity with the Revised Rules of the Supreme Court (1999), the request is hereby granted and the appeal ordered withdrawn.

Accordingly, the Clerk of this Court is ordered to have the appeal stricken from the docket of this Court and to send a mandate to the Board of Commissioners of the National Elections Commission, ordering the Commission to resume jurisdiction over the case and give effect to this Judgment. Costs are ruled against the appellants. AND IT IS HEREBY SO ORDERED.

GIVEN UNDER OUR HANDS AND SEAL
OF THE SUPREME COURT OF LIBERIA,
THIS 23rd DAY OF December, A.D. 2019



Francis S. Korkpor, Sr.
CHIEF JUSTICE
SUPREME COURT OF LIBERIA



Jamesetta H. Wolokolie
ASSOCIATE JUSTICE
SUPREME COURT OF LIBERIA



Sie-A-Nyene G. Yuoh
ASSOCIATE JUSTICE
SUPREME COURT OF LIBERIA



Joseph N. Nagbe
ASSOCIATE JUSTICE
SUPREME COURT OF LIBERIA



Yussif D. Kaba
ASSOCIATE JUSTICE
SUPREME COURT OF LIBERIA